

Reference Number:

NAIH-3883-9/2023

Subject: Decision

DECISION

Before the National Authority for Data Protection and Freedom of Information (hereinafter: Authority) applicant (address:; hereinafter: Applicant) submitted a request via ePaper to the Vác Mayor's Office Public Area Supervision Department (headquarters: 2600 Vác, Március 15. tér 11.; hereinafter: Respondent) on March 3, 2023, regarding the legality of data processing related to the purchase of an online parking permit available under the E-Permit section of the website <https://www.vac.hu/> (<https://eberlet.mininform.hu/vac/site/login> - hereinafter: Website). Based on this request (hereinafter: application), a data protection authority procedure was initiated. The Authority included the Municipality of Vác (headquarters: 2600 Vác, Március 15. tér 11.; hereinafter: Municipality) as a party in the above data protection procedure on May 12, 2023. The Authority makes the following decisions in the above data protection authority procedure:

I. The Authority rejects the Applicant's request against the Respondent, as the Respondent is not considered the data controller.

II. The Authority establishes ex officio that the Municipality violated the provisions of Article 5(1)(c), Article 12(1), and Article 13(1)(a) and (c) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC.

III. The Authority instructs the Municipality ex officio, based on Article 58(2)(d) of the General Data Protection Regulation, to provide information on the Website regarding the online parking permit service in accordance with the General Data Protection Regulation, and to modify its data processing practices related to the Website in accordance with the principle of data minimization, and to confirm this to the Authority within 30 days of receiving this decision.

IV. Due to the data protection violations stated in point II above, the Authority imposes an ex officio data protection fine on the Municipality of

500,000 HUF, that is five hundred thousand forints.

The fine specified in point IV must be paid within 30 days from the date this decision becomes final to the Authority's centralized revenue collection account (10032000-01040425-00000000 Centralized Collection Account IBAN: HU83 1003 2000 0104 0425 0000 0000). When transferring the amount, reference must be made to "NAIH-3883/2023 FINE."

1 <https://eur-lex.europa.eu/legal-content/HU/TXT/?uri=celex%3A32016R0679>

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If the Municipality fails to fulfill its obligation to pay the fine by the deadline, it is obliged to pay a late fee. The amount of the late fee corresponds to the statutory interest, which is equal to the central bank base rate valid on the first day of the calendar half-year affected by the delay.

In the event of non-payment of the fine specified in point IV and any applicable late fee, or failure to provide proof of compliance with the obligation specified in point III by the deadline, the Authority shall order the enforcement of the decision.

There is no administrative remedy against the decision, but it can be contested in an administrative lawsuit by a statement of claim addressed to the Metropolitan Court within 30 days from the communication. The statement of claim must be submitted electronically to the Authority, which will forward it to the court along with the case documents. A request for a hearing must be indicated in the statement of claim. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the subject of the lawsuit is subject to the fee recording right. Legal representation is

mandatory in proceedings before the Metropolitan Court.

JUSTIFICATION

I.

Procedure

(1)

On the day of 2023, the Applicant submitted a request to the Authority via ePaper, stating that on the day of 2023, they registered on the Website for the purpose of purchasing a parking permit for the underground garage.

(2)

According to the Applicant, the data processing through the Website violates the following provisions of the General Data Protection Regulation for the following reasons:

(i) Violation of the principle of transparency, as no data processing information is available on the Website or the vac.hu website regarding the contested data processing, and among other things, the identity of the data controller is not clearly discernible from the above, which violates Article 5(1)(a) and Articles 13 and 14 of the General Data Protection Regulation;

(ii) Violation of the principle of legality, as the terms of use designate the consent of the data subject as the legal basis for data processing in the case of purchasing a permit, which, according to the Applicant, cannot be applied in connection with the task of performing a public duty based on the Authority's decision NAIH/2019/2076/11, since waiting and ensuring parking is a local government task under Section 13(1)(2) of Act CLXXXIX of 2011 on Local Governments in Hungary, and according to Section 16/A, it is a public service, thus it is clearly classified as a public duty, and this is not influenced by whether the data controller is the municipality, an economic company owned by the municipality, or a public area supervision operating as an independent budgetary authority, and it is also independent of whether the parking contract is classified as a civil law relationship in a given case, thus the correct legal basis would be Article 6(1)(e) of the General Data Protection Regulation;

2 The form named NAIH_K01 serves for initiating the administrative lawsuit: NAIH_K01 form (2019.09.16). The form can be filled out using the general form filling program (ÁNYK program).

Further information: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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(iii) violation of the principle of data minimization, as the Applicant argues that the principle of data minimization defined in Article 5(1)(c) of the General Data Protection Regulation is also violated by the fact that the data controller unnecessarily requests the provision of numerous personal data as well as the upload of certain documents, particularly the identity card, the address card, and the tax card, and a copy of the vehicle registration certificate (which, according to the Applicant, is contrary to the Authority's position in NAIH/2020/3535/2), while for data processing – considering the license plate recognition cameras – the license plate and email address would be sufficient, as the one-time purchase of a parking ticket operates with much less data, and when purchasing a highway sticker, such a large amount of data and document copies is not requested;

(iv) violation of the principles of accuracy and storage limitation (General Data Protection Regulation Article 5(1)(d) and (e)), as the Applicant's registration on the Website includes data from an expired underground parking permit for the year 2021, which is two years prior to the registration, while data for underground parking permits for other years are not available.

(3)

In the application, the Applicant requested that the Authority remedy the violation within the framework of the data protection authority procedure, and in this regard

(i) hold the Respondent liable for violating the provisions of the General Data Protection Regulation;

(ii) instruct the Respondent to align its data processing operations with the General Data Protection Regulation;

(iii) impose a fine on the Respondent.

(4)

In addition to the above, the Authority ex officio examined the compliance of the general data processing practices related to the contents of the application during the procedure.

(5)

In response to the Authority's inquiry, on April 5, 2023, the City Clerk of Vác submitted a response registered under NAIH-3883-3/2023, stating that the Respondent is not an independent budgetary authority, but rather an organizational unit of the Váci Mayor's Office (represented by the clerk).

(6)

According to the Respondent's statement, the data controller for the data processing subject to this procedure is the Municipality. In order to establish the facts and considering that the procedure directly affects the rights and obligations of the Municipality, the Authority, as stated in the dispositive part, involved the Municipality as a party on May 12, 2023, and requested a statement.

(7)

In its response received on May 31, 2023, registered under NAIH-3883-5/2023, the Municipality confirmed the Respondent's previous statements.

(8)

On June 11, 2023, the Authority contacted the National Infocommunication Service Provider Ltd. (headquarters: 1081 Budapest, Csokonai u. 3.; hereinafter: NISZ) to clarify and prove the electronic identification options. According to the statement received from NISZ on June 29, 2023, registered under NAIH-3883-7/2023, in the case of providing electronic administration, the Municipality, based on Section 25(3)(c) of Act CCXXII of 2015 on the general rules of electronic administration and trust services (hereinafter: E-administration Act), as of January 1, 2018.

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is not only entitled but also obliged to utilize the services of the Central Identification Agent (hereinafter: KAÜ). NISZ, based on the inquiry from the Authority, examined the registration interface of the Website, and the KAÜ is not found there.

(9)

On July 24, 2023, the Authority called upon clients, based on Section 76 of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.), to submit statements and evidence requests within 15 days from receipt, and to familiarize themselves with the documents of the case; thereafter, the Authority will close the evidence collection. Each client received the above call on July 25, 2023, and as of today, no statements have been submitted to the Authority.

II.

Legal provisions applicable to the case

(10)

According to Article 2(1) of the General Data Protection Regulation, the General Data Protection Regulation must be applied to the processing of personal data that is carried out in whole or in part by automated means, as well as to the non-automated processing of data that forms part of a filing system or is intended to form part of a filing system.

(11)

According to Article 5(1)(c) of the General Data Protection Regulation, personal data must be adequate and relevant in relation to the purposes for which they are processed, and limited to what is necessary ("data minimization").

(12)

According to Article 5(2) of the General Data Protection Regulation, the data controller is responsible for compliance with paragraph (1) and must be able to demonstrate such compliance ("accountability").

(13)

According to Article 12(1) of the General Data Protection Regulation, the data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, and all information referred to in Articles 15–22 and 34 in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when addressing any information to children. The information shall be provided in writing or by other means – including, where appropriate, electronically. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject has been verified by other means.

(14)

According to Article 13(1)(a) and (c) of the General Data Protection Regulation, if personal data relating to the data subject is collected from the data subject, the data subject must be informed, among other things, of the identity and contact details of the data controller and, where applicable, of the data controller's representative, as well as the purposes of the intended processing of personal data and the legal basis for the processing.

(15)

According to Article 58(2)(d) of the General Data Protection Regulation, the supervisory authority, acting in its corrective capacity, shall instruct the data controller or the processor to bring its processing operations – where appropriate, in a specified manner and within a specified time frame – into compliance with the provisions of this Regulation.

(16)

According to Article 58(2)(i) of the General Data Protection Regulation, the supervisory authority, acting in its corrective capacity, shall impose an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures mentioned in this paragraph.

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(17)

The processing of data falling under the scope of the General Data Protection Regulation shall be applied in accordance with the provisions specified therein, with the supplements provided in Section 2 (2) of Act CXII of 2011 on Informational Self-Determination and Freedom of Information (hereinafter: Infotv.).

(18)

According to Section 60 (1) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate such a procedure ex officio.

(19)

According to Section 61 (1) a) of the Infotv., in its decision made in the data protection authority procedure, the Authority may apply the legal consequences specified in the General Data Protection Regulation in connection with the data processing operations defined in Section 2 (2) of the Infotv.

(20)

According to Section 61 (4) b) of the Infotv., in the case of a fine imposed under Article 83 of the General Data Protection Regulation, the amount of the fine may range from one hundred thousand to twenty million forints if the entity obligated to pay the fine is a budgetary body as determined in the decision made in the data protection authority procedure.

(21)

Based on Section 75/A of the Infotv., the Authority shall exercise the powers set forth in Articles 83 (2)–(6) of the General Data Protection Regulation with consideration of the principle of proportionality, particularly by addressing the first violation of the provisions regarding the processing of personal data—defined in legislation or in mandatory legal acts of the European Union—primarily by warning the data controller or data processor, in accordance with Article 58 of the General Data Protection

Regulation.

(22)

In the absence of any differing provisions in the General Data Protection Regulation, the provisions of the Administrative Procedure Act (Ákr.) shall apply to the data protection authority procedure initiated upon request, with the deviations specified in the Infotv.

III.

Decision

1. Established Facts

1.1. Description of Data Processing and Scope of Personal Data Processed

(23)

On 2023, the Applicant registered on the Website for the purpose of purchasing a parking permit for an underground garage. During the mandatory preliminary registration, the Applicant was required to provide several personal data, including their name, address, contact details, tax number qualification, and to upload a complete copy of both sides of the vehicle registration certificate, as well as copies of their address card, identity card, and tax card. Registration is not possible without accepting the terms of use, at the end of which the following user declaration is found: "I have read and accept the terms of use, and I consent to the processing of my personal data provided on the web interface by the Service Provider for the purpose of utilizing the service."

(24)

The terms of use available on the Website do not clearly designate a specific data controller; Vác city, the Applicant, the undefined "Service Provider," and the Representative Body of Vác City Municipality are all mentioned, but their relationship to data processing and to each other is not clarified. At the bottom of the Website, the sentence "The Váci Mayor's Office Public Area Supervision is operated by Mininform Kft." is found,

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while the Website's "Contact" menu item directs to the vac.hu homepage, where the "Public Space Supervision" appears as one of the departments of the Váci Mayor's Office, which employs public officials. According to the laws referenced on the Website, the operation of the parking garage affected by the lease is managed by Váci Városfejlesztő Kft. based on Section 6 (3) of the municipal decree 32/2017 (XII.15.) of the Vác City Council.

(25)

Following the confirmation of the preliminary registration, on 2023, the Applicant purchased the annual parking permit at full price on the Website, without being entitled to any discounts. The Applicant received the confirmation and the invoice for the purchase of the permit via email, with the issuer of the invoice being the Municipality of Vác. Based on the Applicant's experience, entry to the Vác parking garage is possible through an access card, via an electronic access control system, and license plate recognition cameras are also operational during vehicle entry.

(26)

Based on the statements received by the Municipality on May 31, 2023, registered under NAIH-3883-5/2023, the role of the Respondent was to signal the problem and provide the technical and administrative background, while the Municipality's role involved organizational tasks and the creation of the parking regulations. During the development of online administration, the Municipality did not find any option that would eliminate the temporary handling of document copies for the verification of identification data. A copy of the tax card, specifically the tax identification number on it, was necessary for verifying the payment of the vehicle tax. The parking discount is linked not to vehicles but to the operator, and since one person can own multiple vehicles, it cannot be verified based solely on a vehicle's license plate whether that person has fulfilled their vehicle tax obligations for any other vehicles. The Municipality has since reviewed this necessity and has eliminated the requirement for the tax identification number and tax card copy. Following the Authority's inquiry, the

Municipality placed new data management information on the website
https://vac.hu/vac/dok_nyomtatvanyok.html.

1.2. The identity of the data controller

(27)

Based on the details in paragraphs (25) and (26) above, the Authority established that the purpose and means of data processing through the examined Website were determined by the Municipality. All other contributors merely technically executed the Municipality's decision according to the conditions set by the Municipality, and only the Municipality is authorized to decide on the provision or cessation of the service in the context of fulfilling public tasks and exercising public authority.

(28)

The Municipality can establish numerous bodies and legal entities based on the relevant laws; however, this does not affect the fact that decisions are generally made by the Municipality's highest body or by a person authorized by it, unless a law specifically assigns a task to another entity (for example, to the mayor). In the present case, there is no law that assigns parking-related tasks to another entity; it specifically depends on the Municipality's decision. This is further supported by the fact that the fundamental rules of parking are established by the regulation referenced in paragraph (24) above, and all other contributors can only make decisions within that framework for execution.

(29)

Based on the above, the Authority established that the data controller for the examined data processing is the Municipality.

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2. Rejection of the Request Against the Respondent

(30) Since the Respondent is not the data controller of the data processing complained of by the Applicant, the Respondent could not have violated the points of the General Data Protection Regulation indicated by the Applicant.

(31) In light of the above, the Authority rejected the request and conducted an ex officio investigation into the general data processing practices related to the Website concerning the Municipality as the data controller.

3. Ex Officio Investigated Violations Concerning the Municipality

3.1. Violation of Article 12(1) of the General Data Protection Regulation

(32) According to Article 12(1) of the General Data Protection Regulation, the data controller is required to take appropriate measures to provide the data subject with all information regarding the processing of personal data mentioned in Article 13, as well as every piece of information under Articles 15–22 and 34, in a concise, transparent, intelligible, and easily accessible form, presented clearly and in plain language.

(33) The system of appropriate information in the General Data Protection Regulation serves to ensure that the data subject is aware of which personal data is being processed, by which data controller, for what purpose, on what legal basis, and how it will be processed. This is essential for the data subject to be in a position to effectively exercise their rights.

(34) The Authority found that, as detailed in the above paragraph (24), there is no clear and precise indication on the Website and the related <https://www.vac.hu/> website regarding who qualifies as the data controller concerning the online parking permit service (and parking). Average data subjects cannot clearly and unambiguously draw the conclusion about who the data controller is in relation to the examined data processing, and the Authority was only able to determine this through a comprehensive clarification of the facts.

(35) The information available on the Website and the Municipality's related website (<https://www.vac.hu/>) as well as in the parking-related documents and the invoice sent to the Applicant

identified several, a total of four participants (the Respondent, the Municipality, Mininform Ltd., Váci City Development Ltd.); however, their exact roles in data processing and operation could not be identified based on this. This does not constitute clear, transparent, and concise information about the fundamental circumstances of the data processing, particularly regarding the identity of the data controller, to whom, for example, data subject requests could be directed. The fact that local municipalities generally operate public parking is not specific enough and does not always apply to exempt the Municipality as the data controller from the obligation to provide this fundamental information in the specific case, especially when the simultaneous identification of several participants causes even greater confusion than if none were identified.

(36) In light of the above, the Authority, according to the operative part, established ex officio the violation of Article 12(1) of the General Data Protection Regulation, as the information provided to the data subjects on the Website did not contain transparent, clearly, and intelligibly formulated information about the

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regarding the identity of the data controller and generally the responsibilities of the various actors involved in data processing.

3.2. Violation of Article 13(1)(a) and (c) of the General Data Protection Regulation

(37)

According to Article 13(1) and (2) of the General Data Protection Regulation, the data controller is obliged to provide certain fundamental data processing information (e.g., the identity of the data controller, legal basis) to the data subjects in an easily accessible manner when collecting personal data directly from the data subjects.

(38)

Based on the explanations provided in paragraphs (24) and (35) above, the information available on the Website does not clearly specify the identity of the data controller and incorrectly identifies the legal basis for data processing as the consent of the data subject. Considering that the data controller acts in the exercise of public authority – also taking into account the explanations in the decision NAIH/2019/2076/11 available on the Authority's website – the legal basis for data processing in this case can only be Article 6(1)(e) of the General Data Protection Regulation, as the Municipality operates public parking as a state monopoly, exercising public authority powers. The incorrect designation of the legal basis is evaluated by the Authority in the context of Article 13 of the General Data Protection Regulation.

(39)

In the case of data processing based on Article 6(1)(e) of the General Data Protection Regulation, a heightened expectation of information applies to a data controller performing public authority tasks, who does not process data based on the consent of the data subject, compared to a data controller that processes the personal data of the data subject alongside the data subject's right to control. In the absence of adequate information, the data subject is understandably not in a position to exercise their rights appropriately.

(40)

In light of the above, the Authority established, upon request, the violation of Article 13(1)(a) and (c) of the General Data Protection Regulation as stated in the operative part.

3.3. Violation of Article 5(1)(c) of the General Data Protection Regulation

(41)

The purpose of the principle of data minimization under Article 5(1)(c) of the General Data Protection Regulation is to ensure that the data subjects' right to the protection of personal data (constitutional right to informational self-determination) is not restricted beyond what is necessary by the data processing. This is especially true for data processing situations where the data subject has even fewer choices than average, such as in the case of data processing conducted by the Municipality in

the performance of its public duties, as the Authority has also explained in its decision NAIH-642-4/2022 available on its website. The data processing examined in the present case also falls within this category.

(42)

The Authority found that, as detailed in paragraphs (8), (23), (25), and (26) above, during the online purchase of a subscription (which required registration) on the Website, the data subjects were unnecessarily required to upload copies of their identification documents and tax cards, and the processing of these was unnecessary. The purpose and task of the KAÜ is precisely to enable authentic online identification during state services with much less data provision and without copies of non-authentic documents, such as the tax card.

3 <https://www.naih.hu/hatarozatok-vegzesek/file/187-onkormanyzatok-altali-kameras-adatkezeles>

4 <https://www.naih.hu/hatarozatok-vegzesek/file/706-onkormanyzat-kozfeladatai-ellatasahoz-szukseg-es-adatkezeleseinek-jogi-megfelelese>

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A copy is no longer requested on the Website, as the verification of tax liabilities can be resolved without it.

(43)

Based on the statements received by the Municipality on May 31, 2023, registered under NAIH-3883-5/2023, the Municipality did not examine how the use of the Website could be achieved with the least amount of personal data processing, and it processed a wide range of personal data and document copies that do not have legal evidential force for the purpose of identifying the data subjects. The direct transfer of samples from the offline world to the online world without any modification is a common error. In the online environment, the conditions and rules are not always the same; thus, as the Authority stated in its opinion NAIH/2018/3654/2/V available on its website, a copy of an official identification document suitable for verifying identity does not have evidential force that it is an authentic copy of a valid official document and is not suitable for establishing identity either. Its processing is only possible based on explicit statutory authorization, such as regulations against money laundering (it should be noted that the data controller must make a copy of the original; it is not about a photocopy sent over the internet, but merely proof of viewing the original, which does not replace the original document).

(44)

The tax identification number is also not necessary for the Municipality to associate a specific tax number with a specific person, as the tax number inherently identifies a person, who has already been identified by another method (e.g., KAÜ). The Municipality did not specify in its submission any proportional and lawful interest, real risk, for which a photocopy of the tax identification number would be suitable, necessary, and proportional, which would have constituted unnecessary and disproportionate data processing in the period prior to the initiation of the current procedure concerning the Website.

(45)

In light of the above, the Authority established, upon request, the violation of Article 5(1)(c) of the General Data Protection Regulation according to the operative part.

4. The issue of the principle of accuracy

(46)

The Authority did not ex officio investigate the violation of the principle of accuracy indicated in the request against the Municipality, as it only concerned the online viewing possibility of data held by the Municipality due to accounting obligations, and did not actually affect the accuracy of the personal data (its content).

(47)

The General Data Protection Regulation does not define either the right of the data subject or the

obligation of the data controller to make personal data available online to the data subject, and the mere access of the data subject to their own previous personal data does not in itself imply a data protection risk, while the Authority does not have the competence to examine consumer protection aspects.

5. Examination of the negligent or intentional nature of the violation

(48)

The Authority's clear legal interpretation, which is also found in the decision from 2019 mentioned in paragraph (38) above, is applicable to the legal basis for data processing carried out by the Municipality based on statutory duties. Any deviation from this by the data subject...

5 <https://www.naih.hu/adatvedelmi-allasfoglalasok/file/50-allasfoglalas-az-okmanymasolatok-keszitesere>
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No objective circumstances justified the notification in the present case; however, no information indicating intentional wrongdoing emerged.

(49)

The clear identification of the data controller is a fundamental requirement under the General Data Protection Regulation, and in the absence of such identification, at least negligence must be established concerning the contradictory and objectively unusable information presented in the above paragraphs (24) and (35). No evidence to the contrary emerged during the proceedings.

(50)

Due to the risk-based approach of the General Data Protection Regulation, at least negligence exists in connection with the incorrectness of the fundamental content of the notification, especially in the case of a state or municipal data controller.

(51)

According to the authority's practice expressed in the decision referenced in the above paragraph (41) from 2022, there is an increased expectation in the case of data processing carried out by the Municipality in the scope of its public duties. In this regard, compliance with the principles—such as data minimization—should be expected during the planning of data processing, and any substantial deviation from this would constitute at least negligence. No information indicating intentional wrongdoing emerged in this regard during the proceedings.

IV. Legal Consequences

(52)

Based on its tasks and powers defined in Section 38 (2) of the Infotv., it is undisputed that if the Authority establishes a violation that is still ongoing, it is obliged to require the data controller to remedy the violation in accordance with the measures specified in Article 58 (2) of the General Data Protection Regulation. In this regard, the Authority, in the operative part, obligated the Municipality to provide appropriate information on the Website regarding the online parking permit service as specified in this decision, and to revise its data processing practices by conducting a substantial review of the necessity of the personal data (and document copies) processed through the Website, along with proper documentation and verification.

(53)

According to Article 58 (2) (i) of the General Data Protection Regulation, depending on the circumstances of the case, the Authority may impose an administrative fine ex officio, in addition to or instead of the measures mentioned in Article 58 (2). In deciding whether it is justified to impose a data protection fine in addition to other legal consequences, the Authority acted within its statutory discretion, considering Section 61 (1) (a) of the Infotv., Section 75/A of the Infotv., as well as Article 83 (2) and Article 58 (2) of the General Data Protection Regulation.

(54)

Based on the Authority's assessment, it was necessary to impose a data protection fine in the case of the violations established ex officio in point III.3 of the operative part, as the sanction of reprimand alone would not be proportional and deterrent.

(55)

In terms of the necessity and amount of the fine, the Authority took into account that the Municipality qualifies as a budgetary institution, thus the possible maximum fine was 20,000,000 HUF according to Section 61 (4) (b) of the Infotv.

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(56)

In determining the amount of the fine, the Authority considered the following aspects:

(i) The actual total revenue of the Municipality in 2022 was 27,893,301,000 HUF according to the data available on its website.

(ii) The fine amount of 500,000 HUF established concerning the Municipality is 0.002% of its 2022 annual revenue.

(57)

When determining the amount of the data protection fine, the Authority took the following mitigating circumstances into account:

(i) The duration of the violation—the possibility of online permit purchase—was short (Article 83 (2) (a) of the General Data Protection Regulation);

(ii) The violation was negligent in nature as explained in point III.5 of the decision (Article 83 (2) (b) of the General Data Protection Regulation);

(iii) The Authority had not previously established any relevant data protection violation against the Municipality (Article 83 (2) (e) of the General Data Protection Regulation);

(iv) The Municipality attempted to improve the information available on the Website and to cease unnecessary data processing during the proceedings, as explained in the above paragraph (26), to remedy the violation (Article 83 (2) (f) of the General Data Protection Regulation);

(v) The current proceedings have extended beyond the statutory procedural deadline (Article 83 (2) (k) of the General Data Protection Regulation).

(58)

In determining the amount of the data protection fine, the Authority considered the following aggravating circumstances:

(i) The Municipality provided inadequate information regarding the fundamental aspects of the data processing in question, namely the identity of the data controller and the legal basis (Article 83 (2) (k) of the General Data Protection Regulation);

(ii) The Municipality processes an extremely large number of personal data related to its core activities as a public authority, thus the expected level of care and the degree of risk associated with its data processing is greater than that of an average data controller (Article 83 (2) (k) of the General Data Protection Regulation).

(59)

In making its decision regarding the legal consequences, the Authority did not consider the points of Article 83 (2) of the General Data Protection Regulation that were not detailed above to be relevant in this case.

(60)

The Authority determined the amount of the data protection fine within its statutory discretion, taking into account the statutory maximum according to Section 61 (4) (b) of the Infotv.

(61)

Based on the criteria specified in this Section IV and all circumstances of the case, the Authority considered the amount of the fine to be proportional and deterrent from both the special and general prevention perspectives.

(62)

Since the Municipality is a public authority, the Authority will publish this decision on its website in accordance with Section 61 (2) b) of the Infotv., while anonymizing the Applicant.

V. Other Issues

(63)

According to Section 38 (2) of the Infotv., the Authority's task is to monitor and facilitate the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data, and to promote the free flow of personal data within the European Union. According to Section 38 (2a) of the Infotv., the tasks and powers assigned to the supervisory authority in the General Data Protection Regulation are exercised by the Authority in accordance with the provisions of the General Data Protection Regulation and this law concerning legal entities under the jurisdiction of Hungary. The Authority's jurisdiction extends to the entire territory of Hungary.

(64)

The Authority has exceeded the administrative deadline set forth in Section 60/A (1) of the Infotv., therefore the Applicant is entitled to HUF 10,000, i.e., ten thousand forints – at their choice – either by bank transfer or postal voucher in accordance with Section 51 (1) b) of the Ákr.

(65)

Pursuant to Sections 112 (1), 114 (1), and 116 (1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

* * *

(66)

The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Budapest Metropolitan Court is exclusively competent for the case. According to Section 27 (1) of the Kp., legal representation is mandatory in administrative litigation before the court. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(67)

According to Section 29 (1) of the Kp. and in consideration of this, Section 604 of Act CXXX of 2016 on Civil Procedure is applicable, and according to Section 9 (1) b) of Act CCXXII of 2015 on the General Rules of Electronic Administration and Trust Services, the client's legal representative is obliged to maintain electronic communication. The time and place for submitting the statement of claim are determined by Section 39 (1) of the Kp. Information on the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp.

(68)

The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under Section 59 (1) and Section 62 (1) h) of the Itv.

(69)

If the Municipality does not properly demonstrate the fulfillment of the prescribed obligations, the Authority will consider that the obligations have not been fulfilled within the deadline. According to

Section 132 of the Ákr., if the Municipality fails to comply with the obligation set forth in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon notification according to Section 82 (1) of the Ákr. According to Section 133 of the Ákr., the enforcement – unless otherwise provided by law or government decree – is ordered by the Authority that made the decision.

(70)

According to Section 134 of the Ákr., the enforcement – unless otherwise provided by law, government decree, or a local government regulation in a local government authority matter – is carried out by the national tax authority. According to Section 61 (7) of the Infotv., regarding the obligation to perform a specific act, to behave in a certain way, to tolerate, or to cease, as stated in the Authority's decision, the Authority will carry out the enforcement of the decision.

Issued in: Budapest, according to the electronic signature

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